

and may result in inconsistent outcomes. Defendants will not be subject to loss of evidence, added preparation costs, or discovery that otherwise would not have been undertaken if amendment is permitted.

The Motion for Leave to File a First Amended Complaint is **GRANTED**. The proposed First Amended Complaint is attached as an exhibit to the moving papers. As the clerk may not alter a filed document, Plaintiffs are required to file the First Amended Complaint within ten days of today's hearing. Plaintiffs are reminded of the requirement to file a Proof of Service of Summons within thirty days after the filing of the amended complaint per CRC 3.110(b). The current trial date of May 6, 2025 is **VACATED**. This matter is set for review regarding trial resetting on **Monday, July 7, 2025, at 9:00 a.m. in Department 64.**

CREDITORS ADJUSTMENT BUREAU, INC. VS. STRIKE FIRST SNIPERS LLC, ET AL.

Case Number: 22CVG-01048

Tentative Ruling on Application for Judgment Debtor Examination: Petitioner Creditors Adjustment Bureau, Inc. seeks an Order for Appearance and Examination of Kelli Hayward, President of Strike First Enterprises, LLC. Code of Civil Procedure section 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. A Proof of Personal Service was filed on February 18, 2025, indicating that the judgment debtor was served on January 15, 2024. This is obviously a typo, as the Order for Appearance didn't issue until December 12, 2024, and the process server executed the Proof of Service on January 20, 2025. Petitioner is ordered to appear and confirm the date indicated at Item 2 is a typo and confirm that service was effected on January 15, 2025. The Court also notes that at Item 2, the box is checked indicating that there is an attachment POS-020(D). However, there is no attachment. Nonetheless, the Proof of Service indicates that the required documents were timely personally served. An amended proof of service must be filed, correcting the defects, and this must be filed within five court days of today's hearing. The debtor examination shall proceed today.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: This is a wage and hour class action. Plaintiffs seek preliminary approval of a class action and PAGA settlement. The operative complaint is the Third Amended Complaint filed August 2, 2023. Plaintiffs are Marilyn Dobbins, Allyssa Gall, and Hannah Polk, each individually and on behalf of all others similarly situated. Attorneys Kane Moon, H. Scott Leviant, and Mariam Ghazaryan of Moon Law Group, P.C. represent both Marilyn Dobbins and Allyssa Gall. Kearney Littlefield LLP and Littlefield Law represent Plaintiff Hannah Polk.

The Motion for Preliminary Approval of Class Action Settlement, filed January 22, 2025, is made by Plaintiffs Marilyn Dobbins and Hannah Polk. In a footnote on page 1 of the Motion, Plaintiffs state "Plaintiff Alyssa Gall, aka Alice Parker-Combs, signed the MOU setting forth the primary terms of this Settlement but did not sign the Agreement and is not participating in this Motion as a moving party. All references to Plaintiffs herein refer to Marilyn Dobbins and Hannah Polk unless otherwise specified." (Mot. p. 1 fn. 1.) Alyssa Gall did not sign the Settlement Agreement. (Declaration of Leviant, Ex. 1.)